Australian Government

Australian Fisheries Management Authority

DIRECTION NOT TO ENGAGE IN FISHING

Fisheries Management Act 1991
Subsection 41A(2)

SOUTHERN AND EASTERN SCALEFISH AND SHARK FISHERY (Closures) DIRECTION No. 4 2012

I, **JAMES FINDLAY**, Chief Executive Officer of the Australian Fisheries Management Authority, as delegate under delegation No. 1 of 2011 made on 28th January 2011 from the Commission, make the following Direction under subsection 41A(2) of the *Fisheries Management Act 1991*.

Dated: 7 August 2012

James Findlay
Chief Executive Officer
Australian Fisheries Management Authority

Citation

1. This Direction may be cited as the *Southern and Eastern Scalefish and Shark Fishery (Closures) Direction No. 4 2012*.

Commencement

2. This Direction commences on 28 August 2012.

Cessation

3. This Direction ceases as if it was revoked on 1 December 2012 unless earlier revoked.

Interpretation

4. Terms used in this Direction that are defined for the purposes of the *Southern and Eastern Scalefish and Shark Fishery Management Plan 2003* (the Plan) have the same meanings in this Direction as they have in the Plan.

Notes: 1. Terms defined in the *Fisheries Management Act 1991* have the same meanings in this Direction.

To whom this Direction applies

5. This Direction applies to a holder of a fishing concession in the Southern and Eastern Scalefish and Shark Fishery and to a person acting on behalf of the holder.

Direction not to engage in fishing

6. Fishing is not to be engaged in in the following areas of the Southern and Eastern Scalefish and Shark Fishery:

Seiners Horseshoe
The area of Seiner's Horseshoe is the part of the Australian Fishing Zone contained within and bounded by a line:

(a) commencing at the point of latitude 38° 18.374' south, longitude 148° 35.870' east, and running progressively;
(b) east along the parallel of latitude 38° 18.374' south to its intersection with the meridian of longitude 148° 40.236' east;
(c) then southeasterly along the geodesic to the point of latitude 38° 27.116' south, longitude 148° 45.124' east;
(d) then southwesterly along the geodesic to the point of latitude 38° 31.829' south, longitude 148° 32.703' east;
(e) then north northeasterly to the point of commencement.

Everard Horseshoe
The area of Everard Horseshoe is the part of the Australian Fishing Zone contained within and bounded by a line:

(a) commencing at the point of latitude 38° 04.914' south, longitude 149° 21.490' east, and running progressively;
(b) easterly along the geodesic to the point of latitude 38° 04.788' south, longitude 149° 24.089' east;
(c) then southeasterly along the geodesic to the point of latitude 38° 09.837' south, longitude 149° 33.324' east;
(d) then southerly along the geodesic to the point of latitude 38° 16.500' south, longitude 149° 32.912' east;
(e) then west along the parallel of latitude 38° 16.500' south to its intersection with the meridian of longitude 149° 26.800' east;
(f) then northeasterly along the geodesic to the point of latitude 38° 13.151' south, longitude 149° 30.083' east;
(g) then northwesterly to the point of commencement.

Ling Hole
The area of Ling Hole is the part of the Australian Fishing Zone contained within and bounded by a line:

(a) commencing at the point of latitude 41° 20.100' south, longitude 144° 18.880' east, and running progressively;
(b) east along the parallel of latitude 41° 20.100' south to its intersection with the meridian of longitude 144° 23.439' east;

(c) then southerly along the geodesic to the point of latitude 41° 24.880’ south, longitude 144° 23.000’ east;
(d) then westerly along the geodesic to the point of latitude 41° 24.800’ south, longitude 144° 18.880’ east;
(e) then north to the point of commencement.

Maria Island

The area of Maria Island is the part of the Australian Fishing Zone contained within and bounded by a line:

(a) commencing at the point of latitude 42° 42.000’ south, longitude 148° 21.000’ east, and running progressively;
(b) east along the parallel of latitude 42° 42.000’ south to its intersection with the meridian of longitude 148° 26.000’ east;
(c) then south along the parallel of longitude 148° 26.000’ east to its intersection with the meridian of latitude 42° 45.000’ south;
(d) then west along the parallel of latitude 42° 45.000’ south to its intersection with the meridian of longitude 148° 21.000’ east;
(e) then north to the point of commencement.